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PART I

Acts, Ordinances, President's Orders and Regulations

GOVERNMENT OF PAKISTAN

MINISTRY OF LAW AND JUSTICE

Islamabad, the 20th April, 2010

F. No. 2 (1)/2010-Pub.—The following Ordinance promulgated by the President on the 18th April, 2010 is hereby published for general information:—

ORDINANCE No. VII OF 2010

AN

ORDINANCE

further to amend the Pakistan Penal Code, 1860

WHEREAS, it is expedient further to amend the Pakistan Penal Code, 1860 (Act No. XLV of 1860) for the purposes hereinafter appearing;

AND WHEREAS, the National Assembly is not in session and the President is satisfied that circumstances exist which render it necessary to take immediate action;

(225)

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NOW, THEREFORE, in exercise of the powers conferred by clause (1) of Article 89 of the Constitution of the Islamic Republic of Pakistan, the President is pleased to make and promulgate the following Ordinance:—

1. **Short title and commencement.**—(1) This Ordinance may be called the Pakistan Penal Code (Amendment) Ordinance, 2010.

(2) It shall come into force at once and shall be deemed to have taken effect on the 26th March, 2010.

2. **Amendment of section 331, Act XLV of 1860.**— In the Pakistan Penal Code, 1860 (Act XLV of 1860), hereinafter referred to as the said Code, i. section 331,—

(i) in sub-section (1), for the words “three years” the words “five years” shall be substituted; and

(ii) in sub-section (2),

(a) after the word “security” the words “or surety” shall be inserted; and

(b) after the word “court” at the end, the words “or may be released on parole as may be prescribed in the rules” shall be inserted.

3. **Amendment of section 337X, Act XLV of 1860.**—In the said Code, in section 337X,—

(i) in sub-section (1), for the words “three years” the words “five years” shall be substituted; and

(ii) in sub-section (2),

(a) after the word “security” the words “or surety” shall be inserted; and

(b) after the word “court” at the end, the words “or may be released on parole as may be prescribed in the rules” shall be inserted.

4. **Amendment of section 337Y, Act XLV of 1860.**—In the said Code, in section 337Y,—

(i) after sub-section (1) the following new sub-section shall be inserted, namely:—

“(1a) The daman may be made payable in lump sum or in installments spread over a period of five years from the date of the final judgment.”; and

(ii) for sub-section (2) the following shall be substituted, namely:—

“(2) Where a convict fails to pay daman or any part thereof within the period specified in sub-section (1a), the convict may be kept in jail and dealt with in the same manner as if sentenced to simple imprisonment until daman is paid in full or may be released on bail if he furnishes security or surety equivalent to the amount of daman to the satisfaction of the court or may be released on parole as may be prescribed in the rules.”.

5. Amendment of section 338G, Act XLV of 1860.—(1) In the said Code, provision of section 338G shall be numbered as sub-section (1) thereof and after sub-section (1), numbered as aforesaid, the following new sub-sections shall be added, namely:—

“(2) Notwithstanding anything contained in sub-section (1), the Federal Government may, by notification in the official Gazette, make rules regarding the following matters, namely:—

- (i) providing mechanism for creation of a fund, which shall be non lapsable and exempt from taxes, for the purpose of making payment of diyat, arsh and daman of the convicts, who on account of poverty and weak financial position are confined in jails for want of making the said payment;
- (ii) facility of extending soft loans out of the said fund to the convicts, enabling them to satisfy the claim of legal heirs of the deceased or victims in respect of diyat, arsh and daman;
- (iii) in appropriate cases release of such prisoners on parole by the court who after having served out the substantive sentence of imprisonment, if any, are confined in jails on account of non payment of diyat, arsh or daman;
- (iv) providing jobs to the said convicts, other than the government departments, in the work places or factories within jail premises or in the places attached with the jails or through the social organizations or philanthropists, enabling the convicts to disburse the amount paid out of the fund or extended through loans;

- (v) mechanism, protecting rights of the victims for the purpose of diyat, arsh and daman; and
- (vi) any other matter for which the rules may be necessary to carry out the aforesaid purposes.”

ASIF ALI ZARDARI,
President.

SYED SULTAN AHMED,
Senior Joint Secretary.